

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #11	CCRB Case #: 201505821	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 07/02/2015 9:30 PM	Location of Incident: 120th Precinct stationhouse	18 Mo. SOL 1/2/2017	Precinct: 120
Date/Time CV Reported Fri, 07/03/2015 3:36 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 07/15/2015 2:10 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Arthur Truscelli	00691	931348	NARCBSI
2. DT3 Gerard Delprete	01973	923749	NARCBSI

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Arthur Truscelli	Force: Det. Arthur Truscelli used physical force against § 87(2)(b)	A . Unsubstantiated
B . DT3 Gerard Delprete	Force: Det. Gerard DelPrete used physical force against § 87(2)(b)	B . Unsubstantiated

Case Summary

On July 2, 2015, at approximately 9:30 p.m., § 87(2)(b) was arrested for § 87(2)(b) and was transported in an unmarked van to the 120th Precinct stationhouse in Staten Island. While being escorted into the stationhouse, Det. Arthur Truscelli and Det. Gerard DelPrete, from Narcotics Borough Staten Island, allegedly pushed § 87(2)(b) towards a row of chairs and leaned their knees and hands on § 87(2)(b)'s back (**Allegation A and B**). § 87(2)(b) sustained a laceration above his right eye and was transported to § 87(2)(b).

Mediation, Civil and Criminal Histories

This complaint was not suitable for mediation. § 87(2)(b) did not file a Notice of Claim regarding this incident (**Board Review 1**). § 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first CCRB complaint (**Board Review 3**).
- Det. Arthur Truscelli has been a member of the service for 13 years and there are no substantiated CCRB allegations against him.
- Det. Gerard DelPrete has been a member of the service for 16 years and there are 3 substantiated CCRB allegations against him. In case number 201205309, allegations of vehicle search, frisk, and search of person were substantiated. The CCRB recommended charges. The case is currently assigned to the Administrative Prosecution Unit.

Findings and Recommendations

Allegation A- Det. Arthur Truscelli used physical force against § 87(2)(b)

Allegation B- Det. Gerard DelPrete used physical force against § 87(2)(b)

§ 87(2)(b) stated that when they arrived at the 120th Precinct station house, Det. Truscelli and Det. DelPrete removed all of the other prisoners from the prisoner van, first, and escorted them into the stationhouse, leaving him behind. Det. Truscelli and Det. DelPrete then returned to the prisoner van and began escorting § 87(2)(b) to the stationhouse. Det. DelPrete stood on § 87(2)(b)'s right side, held onto his right arm, and pushed § 87(2)(b)'s body down by pushing below his neck. Det. Truscelli stood on § 87(2)(b)'s left side and held onto his left arm using both hands. Neither officer spoke while removing § 87(2)(b) from the prisoner van and walking him to the front of the stationhouse. § 87(2)(b) was compliant and walked voluntarily. Upon entering the stationhouse, Det. DelPrete and Det. Truscelli allegedly pushed § 87(2)(b) into a wall. The right side of § 87(2)(b)'s head struck the wall. The impact caused § 87(2)(b) to fall on the right side of his body, into a row of plastic chairs lined up against the wall. § 87(2)(b) sustained a cut above his right eye from one of the plastic chairs as he fell down. Det. DelPrete and Det. Truscelli immediately leaned their knees and hands on § 87(2)(b)'s back and told him, "Don't move." § 87(2)(b) denied moving at any point. Det. DelPrete and Det. Truscelli immediately picked § 87(2)(b) up and escorted him into the holding cell. § 87(2)(b) was then transported to § 87(2)(b). A CT-scan of § 87(2)(b)'s head was performed for a possible concussion, but he did not receive the results. A

doctor told § 87(2)(b) that the cut above his right eye would be cleaned and that he would receive stitches. However, § 87(2)(b) refused to have the cut cleaned without being photographed to document the injury and blood on his face. § 87(2)(b) did not receive stitches (see § 87(2)(b)'s statement). § 87(2)(b)'s arrest photograph depicts a scratch and scab above his right eyebrow (**Board Review 4**).

Two of the prisoners in the prisoner van, § 87(2)(b) and § 87(2)(b) stated that while in the prisoner van, § 87(2)(b) had moved his handcuffs from the back of his body to the front of his body. § 87(2)(b) refused to comply with the officers' instructions to move the handcuffs to the back of his body. § 87(2)(b) and § 87(2)(b) stated that all of the prisoners were escorted into the stationhouse at the same time, with § 87(2)(b) behind them. However, neither § 87(2)(b) nor § 87(2)(b) witnessed any altercation between § 87(2)(b) and the officers. § 87(2)(b) heard an officer say, "Don't flinch," but he did not know what it was in response to. Later § 87(2)(b) was taken to the second floor and overheard two officers talking. One of them said, "Did you see when he was flinching at me? That's why I hit him. We sent him to the hospital with a couple of stitches in his head. Good for his ass."

Both Det. Truscelli and Det. DelPrete stated that § 87(2)(b) had moved his handcuffs to the front of his body and that he refused to put them behind his back. Both officers corroborated that Det. Truscelli stayed with § 87(2)(b) while Det. DelPrete escorted the rest of the prisoners into the stationhouse (see **Det. Truscelli's and Det. DelPrete's statements**).

Det. Truscelli stated that he told § 87(2)(b) he would not remove him without § 87(2)(b) moving his handcuffs back, but he continued to refuse. Det. Truscelli decided to escort § 87(2)(b) into the stationhouse with his handcuffs in front. Det. Truscelli did this alone. Det. Truscelli held § 87(2)(b) on his right arm. § 87(2)(b) was compliant during his escort until they reached the second door in the vestibule of the stationhouse. § 87(2)(b) pulled his entire body back and to the left, towards the entrance door. Det. Truscelli had § 87(2)(b)'s right arm and was hooked with his left arm, and because § 87(2)(b)'s hands were still in front of his body, Det. Truscelli was dragged towards the entrance too. Det. Truscelli did not know if § 87(2)(b) was trying to give him a hard time or if he was going to try to run out of the stationhouse. Det. Truscelli pulled § 87(2)(b) towards him to ensure § 87(2)(b) did not run away. § 87(2)(b) was then face to face with Det. Truscelli and grabbed Det. Truscelli by his shirt. Det. Truscelli wrapped his arms around § 87(2)(b) and they tussled for approximately a second. Then Det. Truscelli and § 87(2)(b) lost balance and tumbled into the plastic chairs. Det. Truscelli picked § 87(2)(b) up by his arm very quickly after falling to the ground and § 87(2)(b) was physically compliant. Det. Truscelli did not and did not see any officer push § 87(2)(b) towards the wall or the chairs. Det. Truscelli did not and did not see any officer lean his knee or hands on § 87(2)(b)'s back. Det. Truscelli noticed a small laceration above § 87(2)(b)'s right eyebrow, which he sustained after his head landed on the chairs. Det. Truscelli sustained a bruise on his elbow. Det. Truscelli called for an ambulance and he and Det. DelPrete escorted § 87(2)(b) to § 87(2)(b). Det. Truscelli did not and did not see any officer push § 87(2)(b) towards the wall or the chairs. Det. Truscelli did not and did not see any officer lean their knees or hands on § 87(2)(b)'s back. Det. Truscelli stated that § 87(2)(b) sustained the laceration above his right eyebrow when he landed on the chairs and Det. Truscelli sustained a bruise on his elbow (see **Det. Truscelli's statement**).

Det. DelPrete denied escorting § 87(2)(b) into the stationhouse or seeing which officers escorted § 87(2)(b) into the stationhouse. Det. DelPrete stated that after he escorted the other prisoners, he did not see § 87(2)(b) again until he escorted § 87(2)(b) to the hospital. Det. DelPrete denied engaging in a physical altercation with § 87(2)(b) and he denied seeing any officer engaged in a physical altercation with § 87(2)(b). Det. DelPrete denied pushing § 87(2)(b) towards a wall or chairs or leaning his knees or hands on § 87(2)(b)'s back, and denied seeing any officer push § 87(2)(b) towards a wall or chairs or leaning his/her knees or hands on § 87(2)(b)'s back (see Det. DelPrete's statement).

The Medical Treatment of Prisoner form prepared for § 87(2)(b) documents a minor laceration to the right side of his head and the Command Log entry for § 87(2)(b)'s arrest documents an unspecified injury. The Event requesting an ambulance to the 120th Precinct stationhouse for an injured prisoner also documents a laceration to the eye (**Board Review 4 and 5**). The request for medical records is pending and they will be added to the case file when they are received. However, it is not in dispute that § 87(2)(b) went to the hospital due to a laceration and by his own testimony he did not receive stitches.

It is not in dispute that § 87(2)(b) received a laceration to the left side of his head. § 87(2)(g)

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Therefore, it is recommended that **Allegations A and B** be closed as **Unsubstantiated**.

Pod: **11**

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date

